



Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☒ Yes ☐ No Please provide the product title and description. [[FAR16.505\(a\)\(4\)\(i\)](#)]

Brand-Name Product Title: TOVEY, 150 TON LOAD CELL SYSTEM

Brand-Name Product Description: Load cell system capable of testing up to 300k pounds, compatible with COLUMBUS JACK Model: 1074-8000 Universal Tester.

Contracting Activity: 97th Contracting Flight

Purchase Request:

Program Name (and Program Element, if applicable): N/A

Estimated Cost/Price of the Order (including options):

Type Program (see [AFFARS 5302.101](#) for definitions): ☐ PEO Program ☒ Other Contracting

Type of Determination: ☒ Individual ☐ Class Expires: [click and select]

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

97th Contracting Flight, Altus AFB, Oklahoma

(2) Nature and/or description of the action being approved:

The 97th Maintenance Squadron (MXS) is requesting to procure an additional load cell system for our aircraft jack tester in order to continue to have jack testing capability while the original load cell is out for calibration. The load cell system must be sent off and calibrated once per year and takes 30 days or longer to return leaving us unable to test aircraft jacks.

(3) Description of the supplies/services required to meet the agency's needs:

TOVEY, 150 TON LOAD CELL SYSTEM

(4) Justification for restricting consideration to a brand-name item:

This vendor is the supplier for the jack tester machine we use and the only source for the load cell system that works with the tester. The load cell system is a part of the existing machine, not a machine itself.

(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

97 CONF has substantial market research and previous purchase history in order to determine the price fair and reasonable.

(6) Other facts supporting the justification:

N/A



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(7) Actions the agency may take to remove or overcome any barriers to decreasing the use of brand-name items before any subsequent acquisition of the supplies or services:

N/A

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

(10) Approving Official's determination that [FAR16.505\(a\)\(4\)\(i\)](#) applies to the order:

As evidenced by my signature below, I hereby determine that the use of brand-name restriction applies.

Date		Signature
18 Mar 2026		